

Court No. - 21

Case :- WRIT - C No. - 15278 of 2023

Petitioner :- Girdhari Das Agarwal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Subhash Chandra Tiwari, Mahendra Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Rajendra Kumar-IV, J.

Learned counsel for the respondent electricity department shall obtain instructions and apprise the Court whether any final assessment order was passed in the instant case or not. He will also show how compliance of legal provisions was made in case final assessment was made.

Put up as fresh on 9.05.2023 showing name of Sri Paras Nath Rai as counsel for the respondents.

(Rajendra Kumar-IV, J.) (Manoj Kumar Gupta, J.)

Order Date :- 5.5.2023

SL

Court No. - 21

Case :- WRIT - C No. - 15278 of 2023

Petitioner :- Girdhari Das Agarwal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Subhash Chandra Tiwari, Mahendra Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Paras Nath Rai

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The matter is taken up in revised call.

Sri P.N. Rai, learned counsel for respondent nos. 3 and 4 is present.

None appears on behalf of the petitioner to press the writ petition.

List as fresh on 16.05.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 9.5.2023

S.P.

Court No. - 21

Case :- WRIT - C No. - 15278 of 2023

Petitioner :- Girdhari Das Agarwal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Subhash Chandra Tiwari, Mahendra Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Paras Nath Rai

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. Sri P.N. Rai, learned counsel for the respondent-Electricity Department, concedes that notice of provisional assessment does not indicate any date on which the petitioner was to be heard. He states that the impugned recovery will be withdrawn.

2. As prayed by him, list as fresh on 18.5.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 16.5.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 15278 of 2023

Petitioner :- Girdhari Das Agarwal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Subhash Chandra Tiwari, Mahendra Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Paras Nath Rai

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. Sri P.N. Rai, learned counsel for respondent nos.3 & 4 submits that provisional assessment notice confirms to the requirements of law, therefore, the respondent department has not withdrawn it.
2. The notice grants 15 days time for filing objections. There is no material on record to show that any date for hearing was ever fixed before initiating recovery proceedings.
3. Under Clause 6.8 (b) (i) of U.P. Electricity Supply Code, 2005 the requirement is that if the Assessing Officer suspects that unauthorized use of electricity has taken place, he will serve a provisional assessment bill alongwith show cause notice to the consumer, giving 15 working days for submission of reply, under proper receipt fixing a date and time of hearing.
4. As noted above, date and time of hearing was not fixed in the show cause notice/provisional assessment notice.
5. We require the Managing Director, Dakshinanchal Vidyut Vitran Nigam Limited to examine the matter and file his personal affidavit and state whether he concurs with the stand taken by the assessing officer before this Court and take remedial step, if the notice is found to be defective.

List as fresh on 06.07.2023.

Registrar (Compliance) shall communicate the instant order to the Managing Director, Dakshinanchal Vidyut Vitran Nigam Limited for due compliance.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 18.5.2023

S.P.

Chief Justice's Court

Case :- WRIT - C No. - 15278 of 2023

Petitioner :- Girdhari Das Agarwal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Subhash Chandra Tiwari, Mahendra Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Paras Nath Rai

Hon'ble Pritinker Diwaker, Chief Justice

Hon'ble Ashutosh Srivastava, J.

1. Heard Sri S.C. Tiwari, learned counsel for the petitioner, Sri P.N. Rai, learned counsel for respondent nos. 3 and 4 and learned counsel for the State-respondents.
2. Learned counsel for the petitioner submits that efforts are being made to settle the matter outside the Court and at this stage he may be permitted to withdraw the present petition with liberty to file fresh petition, in case, occasion so arises.
3. Ordered accordingly.

Order Date :- 6.7.2023

Shiraz

(Ashutosh Srivastava, J.)

(Pritinker Diwaker, C.J.)